

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JULY 15, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK v REBECCA A DAWSON
Case No. CL24-09701**

Motion for Judgment on the Pleadings

TENTATIVE RULING:

Parties to appear. Plaintiff failed to include notice of the court's tentative ruling system in its moving papers as required by Local Rule 3.9(d).

The unopposed motion for judgment on the pleadings by Plaintiff WELLS FARGO BANK is GRANTED. The court takes judicial notice of its December 8, 2025, order deeming each request for admission as set forth in the Request for Admissions (Set One) to be admitted. (*Pang v. Beverly Hospital* (2000) 79 Cal.App.4th 986, 990.)

Judgment is for Plaintiff in the sum of \$8,787.26. Plaintiff may claim attorney's fees and costs as authorized by statute and pursuant to the procedures set forth in the Code of Civil Procedure and California Rules of Court.

**IVER CAPITAL CORPORATION v. FRED WILSON
Case No. CL25-11771**

Motion to Compel Response to Discovery

TENTATIVE RULING:

Plaintiff IVER CAPITAL CORPORATION's omnibus motion to compel discovery responses is DENIED WITHOUT PREJUDICE.

Neither Plaintiff's motion nor the supporting declaration attach any of the forms of discovery referenced as Exhibit A nor Plaintiff's meet and confer letter referenced as Exhibit B. There is no proof that discovery was ever served on Defendant. The motion itself is vague and ambiguous referring generically to the statutory authority for interrogatories, requests for production and inspection demands. Only in the conclusion does moving party reference the type of discovery at issue: a first set of interrogatories and production demand as the nature of discovery that is at issue. But it is unclear whether the interrogatories were form or special.

Plaintiff is additionally reminded that it is not appropriate to combine multiple discovery motions into a single omnibus motion. Law and motion shall be separately stated and filed. (See Govt. Code § 70617(a)(4) (setting forth the required filing fee for each motion application, or any other paper or request requiring a hearing); see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ("Motions to compel compliance with separate discovery requests ordinarily should be filed separately."))

Additionally, Solano County Superior Court Local Rule 3.9(d) requires a moving party to include in its notice of motion an advisory concerning the court's tentative ruling system. This is missing from Plaintiff's notice of motion.

Finally, there is no proof that this motion was ever served on Defendant.

Emely Ontiveros Carmona vs. A&V Cajun, Inc., et al.
Case No. CU25-03833

Motion for Joinder and Motion to Compel Arbitration

TENTATIVE RULING:

The court, on its own motion continues the hearing to Friday, July 17, 2026 at 9:00 a.m. in Department 8.

DENISE MICHELLE YOUNG JOHNSON v. JORGE ENRIQUE LIZARRAGA GARCIA
Case No. CU25-04336

Motion to Compel Authorization for Release of Medicare Records

TENATIVE RULING:

The motion is DENIED WITHOUT PREJUDICE.

No provision of the Civil Discovery Act permits one party to compel the other to sign an authorization for the release of records. A court does not have the power to create additional methods of discovery beyond the six methods expressly authorized by the Civil Discovery Act. (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 199.)

Plaintiff's law firm's blanket position that their clients do not sign these authorizations should be reviewed. By placing her mental and physical conditions at issue, Plaintiff has waived her right to privacy as to those conditions. Defendant is entitled to discovery related to those conditions and is not required to solely rely on Plaintiff's responses.

While the court cannot compel Plaintiff to sign an authorization for release of her records, a court can compel production of records by Plaintiff to include medical records in her possession or those which she is capable of acquiring. Likewise, a court can compel a non-party's compliance with a subpoena duces tecum.

COLEMAN v. SELECT PORTFOLIO SERVICING, INC., ET AL.
Case No. CU26-00897

Demurrer

TENTATIVE RULING

Defendant Wells Fargo Bank's demurrer to Plaintiff's complaint is SUSTAINED WITH LEAVE TO AMEND IN PART and WITHOUT LEAVE TO AMEND IN PART.

The court takes judicial notice of the effects of the deeds of trust recorded on October 29, 2004 and August 31, 2005, the corporate assignment of deed of trust recorded on June 12, 2019, and the corporate assignment of deed of trust recorded on December 7, 2023. (RJN, Exhs. 2-3, 5, 7.) A court may take judicial notice of recorded instruments and their effect. (*Poseidon Dev., Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117-1118.)

Defendant's demurrer to the first cause of action to quiet title is SUSTAINED WITHOUT LEAVE TO AMEND. A quiet title action must allege that a defendant may be asserting a claim that is adverse to the claim of the plaintiff. (Code Civ. Proc. § 761.020(c); *Wolfe v. Lipsy* (1985) 163 Cal.App.3d 633, 638.) Although Plaintiff alleged that Defendant Wells Fargo only assigned the work of servicing the loan to Defendant Select Portfolio Servicing (Complaint, § IV(3)), this allegation is contradicted by the corporate assignment of deed of trust recorded on June 12, 2019 establishing that Defendant Wells Fargo assigned all of its beneficial interest in the deed of trust to Goldman Sachs Mortgage Company (RJN, Exh. 5). A judicially noticed fact trumps a conflicting allegation in a complaint. (*Williams v. S. Cal. Gas Co.* (2009) 176 Cal.App.4th 591, 598.)

Defendant's demurrer to the fourth cause of action for "unlawful assignment" is SUSTAINED WITHOUT LEAVE TO AMEND. The allegation that the 2023 corporate assignment of deed of trust was recorded improperly because Defendant Select Portfolio Servicing was not assigned the beneficial interest in the deed of trust (Complaint, ¶ V(4)(1)) is contradicted by the recorded assignments (RJN, Exhs. 5, 7). The 2019 assignment establishes that Defendant Wells Fargo assigned its interest in the deed of trust to Goldman Sachs. (RJN, Exh. 5.) The 2023 assignment establishes

that Defendant Select Portfolio Servicing assigned Goldman Sachs' interest in the deed of trust as "attorney in fact" for Goldman Sachs. (RJN, Exh. 7.)

It does not appear reasonably possible for Plaintiff to be able to cure the defects in these causes of action by amendment and Plaintiff has made no effort to meet her burden of explaining in what manner she proposes to amend the complaint or how the proposed amendment would change the legal effect of the causes of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

The demurrer to the remaining causes of action for fraud and financial elder abuse is SUSTAINED WITH LEAVE TO AMEND.

Both causes of action are based on the alleged fraud committed in the origination of a loan and the recording of a deed of trust securing that loan in 2007. (Complaint, ¶¶ IV(2), V(1)-V(3).) The statute of limitations for fraud is three years. (Code Civ. Proc. § 338(d).) The statute of limitations for a claim of financial elder abuse is four years. (Welf. & Inst. Code § 15657.7.) Because the running of the applicable statutes of limitation for these causes of action appear "clearly and affirmatively" from Plaintiff's allegations (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881), Plaintiff must allege with specificity the factual basis for any exception to, or tolling of, the statutes of limitation, including delayed discovery and equitable tolling. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641). Plaintiff did not do so.

Additionally, Plaintiff's fraud and elder abuse causes of action have not been pleaded with adequate specificity. (*Comm. on Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 216-217; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) In a fraud action against a corporation, the requirement of specificity demands that a plaintiff allege the names of the persons who made the allegedly fraudulent representations, their authority to speak on behalf of the corporation, to whom they made the representations, what they said or wrote, and when it was said or written. (*Tarmann v. State Farms Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157; *Archuleta v. Grand Lodge of Int'l Ass'n of Machinists and Aerospace Workers* (1968) 262 Cal.App.2d 202, 208-209.) Plaintiff does not allege any misrepresentations made by any agent or employee for Defendant Wells Fargo or its predecessor in interest, the authority of the speaker to speak on behalf of Defendant, to whom any misrepresentation was made, what was actually said or written, or when it was said or written. In fact, the only "misrepresentation" alleged is the line in the settlement statement for the loan indicating disbursement of loan funds to pay off "nonexistent liens" that no longer existed because the original mortgage encumbering the property had been fully paid off in 2001. (Complaint, ¶¶ IV(1)-IV(2).) But, deeds of trust were recorded against the property for new loans issued in 2004 and 2005 and it was this new indebtedness that was paid off by the 2007 loan, contradicting any allege falsity in

the representation. (RJN, Exhs. 2-3; Complaint, Exh. E.) Plaintiff's elder abuse claim is based on the same insufficient fraud allegations.

A strong policy exists that a Plaintiff should be permitted to amend her complaint – especially an initial pleading - if there is any possibility that a defect can be cured. (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091.) Plaintiff shall file any first amended complaint consistent with this ruling within 10 days of the hearing. (Cal. Rules of Court, rule 3.1320(g).)

On its own motion the court **vacates** Plaintiff's Amended Motion for Leave to File First Amended Complaint currently calendared for October 14, 2026.

JASPER WILLIE ANDERSON v. HAMPTON INN VALLEJO, SAK HOSPITALITY, INC. Case No. FCS059565

**Motion for Leave to File First Amended Complaint.
Motion for Appointment of Discovery Referee**

TENTATIVE RULING:

Plaintiff's motion for leave to file a first-amended complaint as to SAK HOSPITALITY d/b/a HAMPTON INN is GRANTED conditioned upon the reopening of discovery deadlines and the currently scheduled trial being vacated and reset. Plaintiff's motion to add a new Defendant, GENE PRICE, is DENIED as the statute of limitations from the February 15, 2021, alleged incident has passed and the identity of GENE PRICE has been known or knowable to Plaintiff.

The first amended complaint shall be filed and served in 10 court days. Responsive pleadings are due per Code of Civil Procedure.

Defendant's motion for the appointment of a discovery referee at Plaintiff's expense is GRANTED. Plaintiff's alleged conduct during his original deposition is the sole cause of the need for a discovery referee, despite Plaintiff's counsel's best efforts to intervene. The court has observed similar behavior to that cited by Plaintiff's counsel.

The parties shall meet and confer regarding the identity of a discovery referee in the next 20 court days and Plaintiff's counsel shall make financial arrangements with the referee in the next 30 court days. If the parties are unable to agree on a discovery referee, in 21 court days submit two names each to the court, include rates, CV, available dates to monitor the continued deposition and notify the judicial assistant for Department 8 of the submission so that the court is informed that a decision is needed.

All future set dates are vacated and the matter is continued for trial setting to October 15, 2026 at 8:30. Updated CMCs shall be filed which shall confirm completion of Plaintiff's deposition and identify 3 mutually agreeable jury trial dates in 2027.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002